

Right to Housing Act, 2018

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Right to Housing Act, 2075

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Amending Act

1. Act to Amend Some Nepal Acts Relating to the Civil Code, 2075 2076.1.2

Act Made to Provide for the Right to Housing

Preamble: Whereas, it is desirable to make necessary provisions regarding the provision of appropriate and safe housing facilities to homeless Nepali citizens in accordance with the Constitution of Nepal,

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "Right to Housing Act, 2075".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Housing" means a building, house, part thereof, or such permanent or temporary partial or complete structure constructed for residential purposes.

(b) "Housing site" means the boundaries of the land occupied by a housing and the housing, and the term also includes a site having joint or collective housing.

(c) "Housing area" means a group of one or more housing sites.

(d) "Homeless" means a person or family to whom housing facilities are to be provided pursuant to Section 7.

(e) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules made under this Act.

(f) "Family" means the spouse, son, daughter-in-law, daughter, adopted son, adopted daughter, father, mother, stepmother, elder brother, elder brother's wife, younger brother, younger brother's wife, and elder sister, younger sister of the citizen receiving housing facilities. Provided that the term shall not include a family member who has separated their share according to law and is residing independently by pursuing their own occupation or business.

(g) "Ministry" means the Ministry of the Government of Nepal dealing with matters relating to housing.

(h) "Local level" means a Rural Municipality or Municipality. Chapter-2

Respect, Protection and Fulfillment of the Right to Housing

3.

Right to Housing: (1) Every citizen shall have the right to appropriate housing, and such right shall be respected, protected and fulfilled in accordance with this Act and other prevailing laws. (2) Under the right to housing pursuant to Sub-section (1), every citizen shall have the following rights:- (a) to build, reside in and use safe, appropriate and affordable housing subject to the standards determined by prevailing law, (b) to be safe from situations where life is endangered due to lack of housing, (c) to choose a housing site and to make arrangements for housing in an appropriate place by migrating according to prevailing law, (d) to have the respect and protection of one's religious, social and cultural identity in the housing site, (e) to conserve the designated open area around one's housing site and its surroundings without constructing physical structures. (3) The responsibility for respecting, promoting, protecting, fulfilling and implementing the right pursuant to Sub-section (1) shall be of the Government of Nepal, the Provincial Government and the Local level. 4. Citizen's Right to Housing to be Respected: (1) A citizen must be allowed to enjoy their housing peacefully and without hindrance. (2) No citizen shall be deprived of or discriminated against in housing facilities on grounds of origin, religion, caste, ethnicity, sex, physical condition, disability, health status, marital status, pregnancy, economic condition, language or region, ideological condition or any other similar grounds. 5. Removal for Public Purpose: (1) For public purposes, a citizen may be removed from their housing in accordance with prevailing law. (2) While removing a citizen from their owned housing for public purposes pursuant to Sub-section (1), provision must be made for their resettlement or compensation provided according to prevailing law. (3) The compensation pursuant to Sub-section (2) must be provided to the citizen before the act of removing them from the housing. (4) While removing a citizen from their housing for public purposes pursuant to Sub-section (1), the following conditions must be fulfilled:- (a) consultation has been held with the citizen, (b) adequate notice with reasons has been communicated, (c) appropriate identification of the person or family to be removed from the housing has been made, (d) an authorized officer or their representative is present at the time and place of removal, (e) it is not nighttime or similarly inappropriate time. (5) During removal pursuant to this Section, due attention must be paid to the protection of senior citizens, sick persons, persons with disabilities, children, helpless persons, incapacitated persons, and pregnant women. (6) Provisions regarding resettlement pursuant to this Section shall be as arranged by the concerned public body. 6.

Access to Resources: The Government of Nepal, the Provincial Government and the Local level must make arrangements for citizens to have easy access according to law to the use of resources located in the housing site. Chapter-3 Providing Housing Facilities 7. Providing Housing: Notwithstanding anything contained in Chapter-2 of this Act, the Government of Nepal, the Provincial Government or the Local level shall, based on available resources in mutual coordination, prioritize the homeless persons and families mentioned below and gradually provide housing facilities as prescribed:- (a) those who do not own any house or land in the name of themselves or their family within the State of Nepal and are unable to arrange housing from their own or their family's income, resources or efforts, (b) those who have been permanently displaced due to natural disasters and for whom the condition under clause (a) exists. 8. Providing Financial Resources: (1) Concessional financial facilities as prescribed shall be made available to provide housing facilities to homeless persons and families pursuant to Section 7. (2) Homeless persons and families who are extremely poor and unable to arrange housing even under the facilities pursuant to Sub-section (1) and who cannot make alternative arrangements shall be provided housing facilities on a priority basis gradually as prescribed. 9. Collection of Records and Identification: (1) The concerned Local level must collect records as prescribed in such a manner as to reveal the detailed identification and residence status of persons and families to whom housing facilities are to be provided. (2) The details of the records collected pursuant to Sub-section (1) must be made available by the Local level to the Government of Nepal through the Provincial

Government. 10. Identity Card to be Provided: (1) The concerned Local level must distribute identity cards as prescribed to the concerned person or family. (2) The distribution of identity cards pursuant to Sub-section (1) must be completed within the period as prescribed. (3) The details of the identity cards distributed pursuant to this Section must be made available by the concerned Local level to the concerned Provincial Government and the Ministry. (4) Based on the details of the identity cards distributed pursuant to this Section, the Government of Nepal, the Provincial Government and the Local level shall, avoiding duplication, arrange resources and gradually provide housing facilities as prescribed to the citizens. 11. Assistance to be Provided: The Government of Nepal and the Provincial Government must provide financial and technical assistance to the Local level to carry out the work pursuant to Sections 9 and 10. 12.

Declaration of Not Having Land or Housing: A person or family identified to receive housing facilities pursuant to Section 9 must, before receiving housing facilities under this Act, make a self-declaration as prescribed that they or their family do not own any land, housing or both in their name or their family's name in any territory of the country and that they are unable to arrange housing from their own or their family's income, resources or efforts. 13. Temporary Housing to be Provided: (1) The Government of Nepal, the Provincial Government and the Local level must, in mutual coordination, immediately provide temporary housing or financial assistance as prescribed for persons and families displaced by disasters. (2) The temporary housing pursuant to Sub-section (1) must have minimum facilities as prescribed, including a gender-friendly and disability-friendly environment. (3) If, for a person or family sheltered in temporary housing pursuant to Sub-section (1), the disaster situation normalizes and they become able to reside in their original place, arrangements must be made to rehabilitate them to that place. 14. Resettlement Arrangements to be Made: (1) If a person or family completely displaced due to the cause pursuant to Section 13 does not own any land elsewhere, or owns land but it is unsuitable for residence due to geographical or other reasons, and due to their economic impoverishment they themselves cannot arrange any other residence, the Government of Nepal, the Provincial Government or the Local level must make proper resettlement arrangements for such person or family. Provided that, if such person or family is engaged in any income-generating activity, arrangements may be made for their resettlement by providing concessional loans and partial subsidies according to prevailing law. (2) While making resettlement arrangements pursuant to Sub-section (1), as far as possible, due attention must also be paid to the social, cultural aspects and livelihood of the concerned person or family. 15.

Ownership, Use and Possession Rights of Housing: (1) Where housing is built and provided to citizens by the Government of Nepal, the Provincial Government or the Local level under this Act, arrangements may be made for the ownership of such housing to be sole, collective or joint ownership of the person, family or community receiving such housing facility. (2) Notwithstanding anything contained in Sub-section (1), there shall be no bar to making arrangements so that only the right of possession of such housing vests in the concerned person or family. (3) If a housing facility is provided with sole ownership of one person and family, the same person and family who hold the ownership must reside in such housing. (4) If a housing facility is provided with collective or joint ownership, the ownership of such housing shall vest in all persons and families residing therein. (5) Housing provided with sole, collective or joint ownership of a person or family pursuant to Sub-sections (2), (3) and (4) shall not be used for taking loans by keeping it as collateral with banks, financial or other institutions, sold, given on rent or lease, or ownership transferred to another person, or rights relinquished in any other manner, without the approval of the concerned Government of Nepal, Provincial Government or Local level that provided such housing. Provided that there shall be no bar to partition among co-parceners according to prevailing law and to transfer ownership by way of name transfer, registry cancellation, inheritance or any other reason in the name of the successor after the death of such

person. (6) Any act contrary to Sub-section (5) shall be deemed null and void automatically, and the ownership of such housing shall automatically vest in the Government of Nepal, the Provincial Government or the concerned Local level that provided the housing. (7) The concerned Government of Nepal or Provincial Government or the concerned Local level that provided the housing pursuant to Sub-section (6) may provide it to other displaced, homeless persons and families. 16. Duplicate Facility Not to be Provided: (1) A person or family who has been provided housing under this Act shall not be provided housing in a manner that results in duplication. (2) A person or family who has been provided housing facility once under this Act shall not be provided such facility again. (3) Notwithstanding anything contained elsewhere in this Section, there shall be no bar to providing housing again if the provided housing is completely damaged by a disaster and rendered uninhabitable. 17.

Housing Facility Not to be Provided: (1) Notwithstanding anything contained elsewhere in this Act, housing facilities under this Act shall not be provided to the following persons and families:- (a) a person holding a position considered as a public servant according to prevailing law, who has retired or been removed from office, and their family, (b) a person receiving remuneration or any other financial facility from a domestic or foreign company, organized institution, partnership, firm, and their family, (c) a person receiving remuneration or any other financial facility from a domestic or foreign non-governmental organization, and their family, (d) a person engaged in trade, business or other income-generating activity in the private sector, or their family, (e) a person working for a foreign government or international organization, or receiving pension or other financial facility from them, and their family, (f) a person who has obtained residency permission of a foreign country or is permanently residing in a foreign country, and their family, (g) a person residing by renting someone else's house, land or apartment for residential purposes, and their family, (h) a person and family who do not have housing but have movable or immovable property exceeding that specified by the Government of Nepal, (i) other persons as prescribed and their family. (2) Notwithstanding anything contained in Sub-section (1), there shall be no bar to providing housing facilities under this Act to a person and their family if their housing is completely damaged by a disaster and rendered uninhabitable, or if the person's annual income is less than that specified by the Government of Nepal. 18. Coordination with Local Level: (1) While providing any housing-related facility under this Act, the Government of Nepal and the Provincial Government must coordinate with the Local level for implementation. (2) The Government of Nepal and the Provincial Government may implement housing-related programs under this Act through the Local level by providing necessary budget, manpower and other technical assistance. 19. Provision for Integrated Settlement Development: (1) While providing housing facilities under this Act, the Government of Nepal, the Provincial Government and the Local level may arrange housing according to the concept of integrated settlement development based on necessity and suitability. (2) Notwithstanding anything contained elsewhere in this Act, there shall be no bar to relocating settlements from remote, inaccessible and unsafe locations where services and facilities cannot be provided due to geographical remoteness, to a location with facilities. 20. Housing Facilities May be Provided by Domestic Private Sector: (1) Subject to prevailing law, private companies or organized institutions may build and distribute housing to citizens. (2) Such housing pursuant to Sub-section (1) must have minimum services, facilities and infrastructure as prescribed. 21.

Availability of Services, Facilities and Infrastructure: The area where housing provided under this Act is located must have minimum services, facilities and infrastructure as prescribed. 22. Monitoring to be Conducted: The Government of Nepal, the Provincial Government and the Local level must form a mechanism as prescribed for monitoring the work of providing housing facilities under this Act. 23. Building Code and Building Construction Standards to be Followed: While providing housing under this Act, the Government of Nepal, the Provincial Government or the Local level must comply with the standards

determined according to federal law relating to settlement development, land use, building code and building construction. 24. Resolution of Disputes: If any dispute, other than relating to rights and titles, arises between persons and families residing in such housing regarding the enjoyment of housing facilities provided under this Act, the Local Judicial Committee shall have the jurisdiction to hear such dispute. Chapter-4 Offenses and Punishments 25.

Offenses and Punishments: (1) If a person commits an act as mentioned below, they shall be deemed to have committed an offense under this Act:- (a) obtaining housing facilities by submitting false details, (b) misusing housing facilities or using housing for purposes other than housing, (c) intentionally collecting or recommending false details, (d) committing an act contrary to Sub-section (5) of Section 15. (2) If a person commits an offense pursuant to Sub-section (1), the following punishment shall be imposed:- (a) for an offense under clause (a), imprisonment for up to two years or a fine of up to five hundred thousand rupees or both, (b) for an offense under clause (b), imprisonment for up to one year or a fine of up to three hundred thousand rupees or both, (c) for an offense under clause (c), a fine of one hundred thousand rupees and, if a government employee, departmental action as well, (d) for an offense under clause (d), imprisonment for up to three years or a fine of up to one million rupees or both. (3) If the fine under Sub-section (2) cannot be recovered from the concerned offender, it shall be recovered as a government due. (4) If a person who has been provided a grant for housing construction under this Act is found to have obtained the grant by providing false details, the amount of such grant shall be recovered as a government due, including interest as per prevailing law, and any action under prevailing law shall also be taken accordingly. Chapter-5 Miscellaneous 26. To be Recorded in the Name of Government of Nepal, Provincial Government or Local Level: In addition to the situation mentioned in Sub-section (6) of Section 15, if the following situation occurs, the housing provided under this Act shall be removed from the name of such person or family and recorded in the name of the Government of Nepal, Provincial Government or Local level that provided such housing facility:- (a) if the person or family provided with housing does not reside therein or does not use or possess it continuously for three years or more, (b) in other circumstances as prescribed. 27.

Maintenance and Service Charges of Housing: (1) The maintenance of housing provided under this Act must be borne by the person or family receiving such housing facility at their own expense. (2) Except as decided by the Government of Nepal, Provincial Government or Local level to be free of charge, the service charges payable for using facilities such as electricity, drinking water etc. installed in the housing must be borne by the person or family receiving such housing within the prescribed time. 28. Housing May be Returned: If a person or family receiving housing provided under this Act wishes to return the housing due to an increase in their economic capacity or other reasons, they may return it to the Government of Nepal, Provincial Government or Local level that provided such housing. The concerned body may honor the person or family so returning. 29. Government of Nepal to be Plaintiff: (1) The Government of Nepal shall be the plaintiff in cases under Sub-section (1) of Section 25. (2) Cases under Sub-section (1) of Section 25 shall be deemed to be included in Schedule-1 of the Muluki Criminal Procedure (Code) Act, 2074 (as amended by the Act to Amend Some Nepal Acts Relating to the Civil Code, 2075). 30. Power to Make Rules: The Government of Nepal may make necessary rules for the implementation of this Act. 31. Power to Make Procedures and Directives: (1) The Government of Nepal, the Provincial Government and the Local level may, subject to this Act and the rules made under this Act, make necessary procedures or directives. (2) Procedures or directives made pursuant to Sub-section (1) must be made public.